



8.006 Income Eligibility

CFR § 246.7(d) Income Criteria and Income Eligibility Determinations

SFP 02-080 WIC Income Eligibility Determining for Households Affected by Privatization of On-base Military Housing

I. Policy Statement

The State Agency must establish income guidelines, definitions, and procedures for LAs to use when determining an applicant's income eligibility. WIC applicants will have their income evaluated at each certification using procedures outlined in this policy.

The State Agency will adopt the income standard of 185% of the current Federal Poverty Guidelines as its eligibility standard. LAs will implement the federally-established income eligibility standards for their program (see Appendix 8.006A – Income Eligibility Guidelines).

All data used to determine income eligibility will be reflective of the applicant's total household income and applicant's status at the time of certification. All applicants will provide documentation of income through:

- a. Proof of participation in an adjunctively eligible program, or
- b. Proof of income

II. Determining Household Size / Economic Unity

Household/economic unit is defined as a group of related or non-related individuals who are living together as one economic unit.

Household/economic unit members share economic resources and consumption of goods and/or services. The terms "economic unit" or "household size" can be used interchangeably. However, "economic unit" is a more appropriate term to use because it conveys that familial relationship is not relevant to the determination of family size and income. The following are examples of how the economic unit discussion can be framed to gather more accurate information from the applicant:

- If the applicant(s) lives with their parent(s) or other family member(s) and they provide financial support such as food, bills, etc., **include them** in the household/economic unit.
- If the applicant(s) lives with others who provide financial support such as food, bills, etc., **include them** in the household/economic unit.
- If the applicant(s) lives with their boyfriend, girlfriend, fiancé, domestic partner, etc., and share any expenses, **include him or her** in the household/economic unit. Include opposite and same sex partners.
- If the applicant(s) lives with their parents or other family member(s) and they do not provide financial support such as food, bills, etc., **do not include** them in the household/economic unit.
- If the applicant(s) lives with others who do not provide financial support such as food, bills, etc., **do not include** them in the household/economic unit.
- If the applicant(s) lives with their boyfriend, girlfriend, fiancé, domestic partner, etc. and do not share any expenses, **do not include him or her** in the household/economic unit. Include opposite and same sex partners.



III. Household/Economic Unit Considerations

The following guidelines serve to direct LA staff on specific household/economic unit income circumstances.

a. Adopted Child

When a child has been adopted by a family, the child is counted in the household of the family. The size and total income of that economic unit will be used to determine if the child is income eligible for WIC.

b. Foster Child

If an infant or child is in the care of foster parents, the Child & Family Services Agency (CFSA), or other child welfare authorities, the infant or child will be considered a family of one; this income is to be documented in the Income screen in HANDS. The foster child will be the only family member selected to which the income will apply. If the foster child is the only participant in the file, the family size will be one. HANDS will automatically count the foster child as a family of one when the 'Foster Care' box is checked. The placement paper, commonly called "Notice to Provider," or an official notification of placement from a temporary adoption organization is required to make the foster parents the Authorized Representatives. The payments made by the welfare agency or received from other sources for the care of that child will be considered to be the only income. This documentation can be scanned and saved in the participant's file for future reference. If a foster parent has not yet received payments from the welfare agency or from other sources for the care of the child, staff shall document \$1 as the income amount for that child and create a Staff Alert in the Notes screen to have WIC staff ask about changes in income at each recurring appointment, or until it is determined that no income will ever be received on behalf of the foster child.

NOTE: If the foster child is a member of a WIC family with other non-foster children, the family size for the non-foster children applying for WIC will be the actual size of the AR's family minus the foster child. HANDS will automatically count the foster child as a family of one when the 'Foster Care' box on the Client screen is checked, regardless of number in the Family Size field.

NOTE: Families with multiple foster children can share a Family ID number and eWIC card in HANDS. Each foster child will have a separate income documented in the Income screen as a household size of one. If the foster parent prefers, each foster child can be divided into separate family files and have individual eWIC cards issued. See Policy 9.001 for additional details.

c. Military Families

Military personnel serving overseas or assigned to a military base, even though they are not living with their families, shall be considered members of the economic unit. Military dependents (i.e., infant, child, or woman) placed in the temporary care of friends or relatives who are dependent on that household to provide food, utilities, etc., shall be considered a part of that household/economic unit during certification. If the applicant receives funds to sustain themselves (beyond in-kind housing), they may be counted as a separate economic unit.

When military personnel use alternative methods of depositing paychecks (waiving military income documentation) and/or receive combat/hazardous duty pay, the income over the last 12 months can be used. **NOTE:** Basic Allowance for Housing (BAH) is not considered income.



d. Pregnant Woman

A pregnant woman's household is assessed by increasing it by the number of expected infants (unless the applicant has religious or cultural objections which preclude this).

e. Resident of Institutions

The resident of an institution is assessed as a separate economic unit from the institution. The institution shall meet the conditions as outlined in the previous section on institutional residency.

f. Co-living

Two separate households/economic units residing at the same address under the same roof shall be considered separate households/economic units. Each household shall have an adequate source of income to cover expenses, such as rent, food, utilities, and other, to be determined as separate households/economic units.

When unmarried individuals reside together as an economic unit, the income and household size of both parties shall be used in determining income eligibility.

g. Separated Family

When a family separates, the child is counted in the family with whom the child lives.

h. Custody

The parent(s) with whom the child spends a majority of their time can claim the child in reporting household size. Child support payments are considered income for the family with whom the child lives, but cannot be deducted from the income of the person making the payments.

i. Teen

An applicant who is under 18 years of age will have her income eligibility assessed following the rules which apply to any other economic unit (see Determining Household/Economic Unit above).

j. In-stream Migrant Worker

In-stream migrant farm workers with expired Verification of Certification (VOC) cards are income eligible as long as their income is determined at least once every 12 months.

k. Refugees

As part of the assessment process, LA staff will ask clarifying questions to determine the size of the economic unit for refugee applicants living in the residence of another individual. LAs shall require all applicants to provide documentation of income at the time of certification. If this requirement would present an unreasonable barrier to participation in the WIC Program, a self-declaration of income may be accepted.

l. Qualified Aliens

The LA shall not count the income of sponsors of qualified aliens (as the term is defined in the Immigration and Nationality Laws (8 U.S.C. 1101 *et seq.*) in determining the income eligibility of the qualified alien, except when the alien is a member of the sponsor's family or economic unit.

IV. Adjunctive Eligibility



When an applicant or a household family member participates in a federal or state program with eligibility guidelines that are equal to or below the WIC income guidelines, the applicant is allowed to enroll in the WIC Program without duplication of their initial income screening.

An applicant is adjunctively income eligible for WIC if documentation shows that the individual or an immediate household member is certified as fully eligible to receive benefits from:

- Supplemental Nutrition Assistance Program (SNAP/Food Stamps)
- Temporary Assistance for Needy Families (TANF) program
- Medicaid (Pending adjunctive eligibility)
 - o [DC Medicaid Programs](#) exist which apply higher income eligibility guidelines than allowed by WIC. DC WIC is working with the Department of Healthcare Finance (DCHF) to allow WIC clinic staff limited access to the DCHF eligibility system so they can verify the Medicaid beneficiaries' household income.

An applicant is automatically eligible for WIC if documentation shows that the individual or an immediate household family member is certified as fully eligible to receive benefits from:

- The National School Lunch Program (NSLP)

Documentation of Adjunctive Eligibility

Applicants determined to be adjunctively or automatically income eligible are required to provide documentation of their participation in one or more of the programs listed above. The Adjunct Eligibility table in HANDS can only be updated on the date of certification. Acceptable forms of adjunctive eligibility documentation (which must include eligibility dates) are:

- o TANF approval letter
- o SNAP (Food Stamps) – most recent certification letter
- o Medicaid (pending adjunctive eligibility, may not be used until further notice)
- o NSLP – most recent certification letter

NOTE: TANF/SNAP cards are not proof of adjunctive program participation unless the card shows a current period of eligibility.

Procedure to Document Adjunct Eligibility:

1. Open the Adjunct Eligibility screen under the Income screen in HANDS
2. Select “Part. Proof” for each of the adjunct eligibility programs the applicant shows proof of participation in
3. If they show documentation that a member of their household is a TANF recipient, select “Fam Elig Proof” for those programs

NOTE: Documentation showing proof of participation in adjunctive eligibility programs may be used within 30 days as documentation of income. In addition, self-declaration is not allowed for adjunctive eligibility.



V. Reportable Income Types

Income for the purposes of this part means gross cash income before deductions for income taxes, employees' social security taxes, insurance premiums, bonds, etc. LA staff shall consider all of the following to determine reportable income:

- a. Monetary compensation for services, including wages, salary, commissions, or fees
- b. Net income from farm and non-farm self-employment
- c. Social Security benefits
- d. Dividends or interest on savings or bonds, income from estates or trusts, or rental income
- e. Public assistance or TANF / welfare payments
- f. Unemployment compensation
- g. Government civilian employee or military retirement or pensions or veterans' payments
- h. Private pensions or annuities
- i. Alimony or child support payments
- j. Regular contributions from persons not living in the household
- k. Net royalties
- l. Other cash income – includes, but is not limited to, cash amounts received or withdrawn from any source including savings, investments, trust accounts, and other resources which are readily available to the family

VI. Documentation of Income

Acceptable types of documentation of income include, but are not limited to:

Employment pay stubs (Issued within 30 days)	Alimony or child support award letter	Tax reporting forms showing total gross income
Income tax return/W-2 forms	Foster care placement letter	Retirement pension letter/stub
Unemployment letter/notice	Social Security benefits letter	Contribution letter
Statement signed and dated by employer	Military pay stubs/LES	Adjunct Eligibility Program enrollment notification

Note: staff shall not make photocopies or scan applicant's proof of income.

Documentation Procedure

Staff shall document income eligibility in the Income screen in HANDS as follows:

1. Enter the appropriate family size (economic unit)
2. Enter name or source of income provider if desired, or leave default as "Primary Provider"
3. Enter the dollar amount of current gross income based on income documentation provided
4. Enter the interval for that amount of income (i.e., hourly, weekly, monthly, annually)
5. If hourly is selected, enter the number of hours per week
6. Enter correct type of income documentation from drop-down menu
7. If income proof is brought in, select all family members to which the income applies, regardless of whether they are being certified today
8. If the AR forgot to bring income proof to certification, "Forgot Documentation" is to be selected and staff shall only apply income to the applicant(s) being certified today



NOTE: Do not apply income to a participant who has less than 90 days left in their certification period, unless they are being recertified.

If applicant presents multiples of the same income documentation type (e.g., employment pay stubs), staff shall utilize the “Income Averaging” feature on the Income Screen in HANDS.

VII. Applicants with No Proof of Income

If an applicant does not provide proof of income on the day of certification because they forgot it, the applicant is to self-declare their current income amount and corresponding interval; the applicant will be certified and receive **only one month** of food benefits if they are within income guidelines. They will be instructed to provide proof of income to the service site within the next 30 days. This will be documented in the Income screen in HANDS by selecting “Forgot Documentation” from the drop-down menu as the type of income documentation. The participant will then sign the “Forgot Documentation-ID/Address/Income” signature type accessible from the Family, Client, or Income screen.

If the applicant provides proof of income within 30 days, WIC staff will verify the amount and update the documentation type by editing the income line in the Income screen in HANDS and may issue multiple months of food benefits.

VIII. Exceptions

Lack of income documentation cannot be a barrier to receiving WIC services, such as in the case of the homeless, migrant farm workers, or people who work for cash. If the applicant cannot provide documentation of income, the applicant shall sign the “No Proof Exists-ID/address/income” signature type accessible from the Income screen. This signature serves as income documentation for the entire certification period and will allow more than one month of food benefits to be issued. This will be recorded in HANDS under the documentation type by selecting “No Proof Exists/Zero Income Signature Form” from the drop-down menu.

IX. Zero Income

If an applicant reports zero income or declares no income exists, the applicant shall be asked to describe, in detail, their living circumstances and how they obtain basic living necessities such as food, shelter, medical care, and clothing to determine if they shall be counted as part of a larger economic unit. If it is determined that the applicant is truly without resources, the applicant shall sign the “Zero Income” signature type accessible from the Income screen. This will be recorded in HANDS under the documentation type by selecting “No Proof Exists/Zero Income Signature Form” from the drop-down menu.

X. Migrant Farm Workers

Determination of income eligibility will be made once every 12 months for migrant field workers and their families. The migrant status will be documented in HANDS, indicating exemption from having income determination repeated within a 12-month period.



XI. Reassessment of Income

The participant's income eligibility during a current certification shall be reassessed if:

- The Program receives information indicating the individual may have misrepresented income and/or household size when applying for services
- The Program receives new information indicating the participant's income has changed
- The participant reports a change in income or household size, while in an active certification
- The LA receives information that the participant(s) is no longer adjunctively eligible
- The LA receives information that there is a change in custody which results in change of income or household size

If the reassessment indicates the family is over income and has ≥ 90 days remaining in their certification period, they are to be provided one month of food benefits, and provided a Notification of Ineligibility. Refer to Policy 8.014 or additional information about the Notification of Ineligibility. If there are ≤ 90 days before the certification period expires, WIC staff shall issue the remaining food benefits through the end of the certification.

NOTE: When a participant is in a current certification and there is reason to suspect that they have provided false information, the LA shall report the concern to the State Agency Nutrition Services team for further investigation.

Reassessment of Income During an Existing Certification and Adding New Family Members

When a new family member is certified while there are existing certifications for other members within the household, the proof of income shall be applied to all participants within the household unless the participant has ≤ 90 days remaining in the certification. Refer to "Reassessment of Income" section above if the family has ≥ 90 days remaining in their certification period.

No Longer Adjunctively Eligible During a Certification Period

A reassessment may identify that a participant/household is no longer adjunctively eligible. However, such persons cannot be disqualified from WIC solely on the basis of cessation of benefits from TANF, SNAP, or other State-administered programs. They will be reassessed under other income criteria before being disqualified.

XII. Household Income Ineligible Termination

If a LA evaluates income for another member of the participant's household, and the evaluation indicates that household income is above the income guidelines, all members of the household shall be terminated from WIC services to include participants in a current certification (refer to Reassessment of Income section). The participants in a current certification are eligible for one month of food benefits. The applicants are not eligible for food benefits. All participants and applicants in the family will be provided with a Notification of Ineligibility and informed of their right to a fair hearing.

NOTE: If a participant's current certification period has ≤ 90 days before it expires, they shall not be terminated and may receive their remaining food benefits until their certification expires.



XIII. Non-Eligible Income Sources

The following sources of income must be excluded when determining income eligibility:

- a. Basic Allowance for Housing (BAH) received by military services personnel residing on or off of military installations
- b. Cost-of-living allowance provided under 37 U.S.C. 405, to a member of a uniformed service who is on duty outside the contiguous states of the United States
- c. The value of in-kind housing and other in-kind benefits
- d. Payments or benefits provided under certain Federal programs or acts, including (but not limited to):
 - i. Reimbursements from the Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970
 - ii. Any payment to volunteer under Title I (VISTA and others) and Title II (RSVP, foster grandparents, and others) of the Domestic Volunteer Service Act of 1973 to the extent excluded by that Act
 - iii. Payment to volunteers under section 8(b)(1)(B) of the Small Business Act
 - iv. Income derived from certain sub-marginal land of the United States that is held in trust for certain Indian tribes
 - v. Payments received under the Job Training Partnership Act
 - vi. Income derived from the disposition of funds to the Grand River Band of Ottawa Indians
 - vii. Payments received under the Alaska Native Claims Settlement Act
 - viii. The value of assistance to children or their families under the National School Lunch Act, as amended, the Child Nutrition Act of 1966, and the Food Stamp Act of 1977
 - ix. Payments by the Indian Claims Commission to the Confederated Tribes and Bands of the Yakima Indian Nation or the Apache Tribe of the Mescalero Reservation
 - x. Payments to the Passamaquoddy Tribe and the Penobscot Nation or any of their members received pursuant to the Maine Indian Claims Settlement Act of 1980
 - xi. Payments under the Low-Income Home Energy Assistance Act, as amended
 - xii. Student financial assistance received from any program funded in whole or part under Title IV of the Higher Education Act of 1965, including the Pell Grant, Supplemental Educational Opportunity Grant, State Student Incentive Grants, National Direct Student Loan, PLUS, College Work Study, and Byrd Honor Scholarship programs that is used for costs described in section 472 (1) and (2) of that Act
 - xiii. Payments under the Disaster Relief Act of 1974 as amended by the Disaster Relief and Emergency Assistance Amendments of 1989
 - xiv. Effective July 1, 1991, payments received under the Carl D. Perkins Vocational Education Act, as amended by the Carl D. Perkins Vocational and Applied Technology Education Act Amendments of 1990
 - xv. Payments pursuant to the Agency Orange Compensation Exclusion Act
 - xvi. Payments received for Wartime Relocation of Civilians under the Civil Liberties Act of 1988
 - xvii. Value of any childcare payments made under section 402(g)(1)(E) of the Social Security Act, as amended by the Family Support Act



- xviii. Value of any “at-risk” block grant childcare payments made under section 508 of Pub. L. 101-508, which amended section 402(i) of the Social Security Act
- xix. Value of any childcare provided or paid for under the Child Care and Development Block Grant Act, as amended
- xx. Mandatory salary reduction amount for military service personnel that is used to fund the Veteran’s Educational Assistance Act of 1984 as amended
- xxi. Payments received under the Old Age Assistance Claims Settlement Act, except for per capita shares in excess of \$2,000
- xxii. Payments received under the Cranston-Gonzales National Affordable Housing Act, unless the income of the family equals or exceeds 80 percent of the median income of the area
- xxiii. Payments received under the Housing and Community Development Act of 1987, unless the income of the family increases at any time to not less than 50 percent of the median income of the area
- xxiv. Payments received under the Sac and Fox Indian claims agreement
- xxv. Payments received under the Judgment Award Authorization Act, as amended
- xxvi. Payments for relocation assistance of members of Navajo and Hopi Tribes
- xxvii. Payments to the Turtle Mountain Band of Chippewas, Arizona
- xxviii. Payments to the Blackfeet, Grosventre, and Assiniboine tribes (Montana) and the Papago (Arizona)
- xxix. Payments to the Assiniboine Tribe of the Fort Belknap Indian community and the Assiniboine Tribe of the Fort Peck Indian Reservation (Montana)
- xxx. Payments to the Red Lake Band of Chippewas
- xxxi. Payments received under the Saginaw Chippewa Indian Tribe of Michigan Distribution of Judgment Funds Act
- xxxii. Payments to the Chippewas of Mississippi
- xxxiii. Military Combat Pay is excluded when it is considered income as a result of deployment to a combat zone under FDPIR (FD-042: Food Distribution Program on Indian Reservations- Pay Received by Military Personnel as Result of Deployment to a Combat Zone. Combat pay is excluded if it is:
 - 1. Received in addition to the service member’s basic pay,
 - 2. Received as a result of deployment to or service in an area designated as a combat zone, **and**
 - 3. Not received prior to the service member’s deployment